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Public Service Commission of Wisconsin
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PUBLIC SERVICE COMMISSION OF WISCONSIN

Application of Wisconsin Electric Power Company for a Certificate of Public Convenience and Necessity to Construct and Operate the South Oak Creek Combustion Turbine Project, Consisting of Five Natural Gas--Fired Single-Cycle Combustion Turbines Generating up to 1100 MW total at the South Oak Creek Facility in the City of Oak Creek, Milwaukee County, Wisconsin	6630-CE-317

FINAL DECISION

This is the Final Decision in the proceeding conducted by the Public Service Commission of Wisconsin (Commission) on the June 14, 2024 application of Wisconsin Electric Power Company (applicant) for a Certificate of Public Convenience and Necessity (CPCN) to construct and operate the South Oak Creek Combustion Turbine (OCCT) Project (project) in the City of Oak Creek in Milwaukee County, Wisconsin. The proposed project will consist of five natural-gas fueled General Electric (GE) 7FA.05 single-cycle combustion turbine generators (CT), each generator having a nominal capacity of approximately 220 megawatts (MW), for a total generating capacity of approximately 1,100 MW. The proposed project site is the South Oak Creek Facility, located directly west of the existing Oak Creek Power Plant and Elm Road Generating Station. The estimated cost of the proposed project is approximately $1,205,000,000 excluding allowance for funds used during construction (AFUDC). The applicant estimates accruing approximately $138,600,000 in AFUDC.

The CPCN application is APPROVED, subject to conditions and as modified by this Final Decision.

Procedural Background

On April 5, 2024, pursuant to Wis. Stat. § 196.491 and Wis. Admin. Code chs. PSC 4 and 111, the applicant filed with the Commission an application for a CPCN to construct the proposed project. The Commission found the application to be incomplete under Wis. Stat. § 196.491(3)(a)2. and Wis. Admin. Code PSC § 111.51 on May 3, 2025. On June 14, 2024, the applicant filed a revision of the application. The Commission found the application to be complete on July 12, 2024. (PSC REF#: 508511.) The Commission issued a Notice of Proceeding on August 15, 2024. (PSC REF#: 513642.)

On September 16, 2024, the Administrative Law Judge (ALJ) granted timely requests to intervene received from Advanced Energy United (AEU), Citizen Utility Board (CUB), the City of Milwaukee, Clean Wisconsin, Inc. (Clean Wisconsin), Healthy Climate Wisconsin (HCW) and Union of Concerned Scientists (UCS),[1] RENEW Wisconsin, Inc. (RENEW), Sierra Club, Walnut Way Conservation Corp. (Walnut Way), Wisconsin Industrial Energy Group (WIEG), and Wisconsin Local Government Climate Coalition (WLGCC). (PSC REF#: 517033.) The parties, for the purposes of review under Wis. Stat. §§ 227.47 and 227.53, are listed in Appendix A of this Final Decision.

On September 27, 2024, the ALJ issued a notice of prehearing conference. (PSC REF#: 518311.) The ALJ held the prehearing conference on November 5, 2024. (Tr. 1-36 PSC REF#: 520599.) On November 5, 2024, the ALJ issued a Prehearing Conference Memorandum establishing the issue, schedule, and other facilitating matters for this proceeding. (PSC REF#: 523284.)

[1] HCW and UCS moved jointly for intervention.

The issue established in the Prehearing Conference Memorandum was:

A. Does the proposed project comply with the applicable standards under Wis. Stat §§ 1.11, 1.12, 196.025, and 196.491, and Wis. Admin. Code chs. PSC 4 and 111?

Wisconsin Stat. § 196.491(3)(g) requires that the Commission take final action within 180 days after it determines a CPCN application to be complete. If it does not meet this deadline, the application is approved by operation of law, unless an extension of no more than 180 days is granted by the Commission Chairperson. On November 8, 2024, the Commission Chairperson granted a 180-day extension, extending the deadline to July 7, 2025. (PSC REF#: 523716.)

On October 20, 2024, Walnut Way filed an application for intervenor compensation in docket 1-IC-566 to retain legal services and expert witnesses to contribute to the record in this proceeding. By Order dated December 23, 2024, the Commission approved Walnut Way's application for intervenor compensation in the amount of $28,749. (PSC REF#: 527995.)

On October 23, 2024, HCW filed an application for intervenor compensation in docket 1-IC-567 to retain legal services and expert witnesses to contribute to the record in this proceeding. By Order dated December 23, 2024, the Commission approved HCW's application for intervenor compensation in the amount of $25,000. (PSC REF#: 527993.)

On November 26, 2024, CUB filed an application for intervenor compensation in docket 1-IC-568 to retain legal services and expert witnesses to contribute to the record in this proceeding as well as in dockets 6630-CE-316 and 6630-CG-140. By Order dated February 27, 2025, the Commission approved CUB's application for intervenor compensation in the amount of $22,441 for this proceeding and a total of $47,500 across the three docketed proceedings. (PSC REF#: 534898.)

The proposed project is a Type II action under Wis. Admin. Code § PSC 4.10(2), Table 2. Type II actions are proposed actions involving requests for Commission approval that have the potential to significantly affect the quality of the human environment within the meaning of Wis. Stat. § 1.11(2)(c). Such actions require the preparation of an environmental assessment (EA). Commission staff worked jointly with Wisconsin Department of Natural Resources (DNR) staff in preparing an EA to evaluate the potential environmental impacts of the project pursuant to Wis. Stat. § 1.11 and Wis. Admin. Code §§ PSC 4.20 and NR 150.20, and to determine whether an environmental impact statement (EIS) was required. On December 26, 2024, the Commission gave notice of a preliminary determination that no significant environmental effects were expected to result from the proposed project and that no EIS was required. Commission staff accepted comments on the preliminary determination and considered them in finishing the EA. On January 29, 2025, an EA evaluating the potential impacts of the project and determining that no EIS was required was issued. (PSC REF#: 531153.)

On January 27, 2025, the ALJ issued a Notice of Hearing scheduling both the party and public hearing sessions. (PSC REF#: 530955.) On March 12 and 13, 2025, the ALJ convened the audiovisual party hearing with no physical location. Tr. 37-233 PSC REF#: 540342, Tr. 334-463 PSC REF#: 540343). At the party hearing session, expert witnesses offered testimony and exhibits on behalf of the applicant, AEU, CUB, Clean Wisconsin, HCW and UCS, RENEW, WIEG, WLGCC, and Commission staff. The City of Milwaukee, Sierra Club, and Walnut Way did not participate.

On March 27, 2025, the ALJ convened two public hearing sessions in person and virtually for members of the general public. Both sessions were held at the Oak Creek

Community Center Ballroom in Oak Creek, Wisconsin, one in the afternoon and one in the evening, providing members of the public opportunity to submit oral testimony. (PSC REF#: 540344.) The Commission also accepted written comments from members of the public at the public hearing, through its website, and by U.S. mail. (PSC REF#: 543899.)

As noticed, the ALJ conducted these hearings as a Class 1 contested case proceeding, pursuant to Wis. Stat. §§ 196.491(3)(b), 227.01(3)(a), and 227.44.

Initial briefs were filed on April 1, 2025 by the applicant, AEU, CUB, Clean Wisconsin, HCW and UCS, RENEW, Walnut Way, WIEG, and WLGCC. Reply briefs were filed on April 11, 2025 by the applicant, AEU, CUB, Clean Wisconsin, HCW-UCS, Walnut Way, and WLGCC. Sierra Club and the City of Milwaukee did not file briefs.

	Initial Briefs	**Reply Briefs**
Applicant	PSC REF#: 540282 confidential PSC REF#: 540283 public	PSC REF#: 541774 confidential PSC REF#: 541775 public
AEU	PSC REF#: 540256 confidential PSC REF#: 540257 public	PSC REF#: 541633
Clean Wisconsin	PSC REF#: 540274 confidential PSC REF#: 540275 public	PSC REF#: 541673 confidential PSC REF#: 541674 public
CUB	PSC REF#: 540285 confidential PSC REF#: 540286 public	PSC REF#: 541768 confidential PSC REF#: 541769 public
HCW and UCS	PSC REF#: 540253 confidential PSC REF#: 540254 public	PSC REF#: 541688 confidential PSC REF#: 541689 public
RENEW	PSC REF#: 540284	
Walnut Way	PSC REF#: 540259	PSC REF#: 541763
WIEG	PSC REF#: 540273	
WLGCC	PSC REF#: 540236	PSC REF#: 541548

The Commission discussed the record in this matter at its open meeting of May 22, 2025. (PSC REF#: 549571.) The Commission delegated authority to Commission staff, pursuant to Wis. Stat. § 15.02(4), to draft a final decision consistent with its discussion and authorized the Secretary to the Commission to sign the Final Decision on behalf of the Commission.

Findings of Fact

1. The applicant is a Wisconsin public utility engaged in providing electrical service in Wisconsin as defined in Wis. Stat. § 196.01(5)(a).

2. The applicant is proposing to construct a natural gas electric generation facility with a nominal nameplate rating of approximately 1,100 MW.

3. The total estimated gross project cost is approximately $1.205 billion, exclusive of AFUDC.

4. Energy conservation, renewable resources, or other energy priorities listed in Wis. Stat. §§ 1.12 and 196.025, or their combination, are not cost-effective, technically feasible, or environmentally sound alternatives to the proposed project.

5. The facilities approved by this Final Decision will adequately address the present needs of the applicant's electric system and are necessary to satisfy the reasonable needs of the public for an adequate supply of electrical energy. *See* Wis. Stat. § 196.491(3)(d)2.

6. The proposed project is necessary to satisfy the significant probable future requirements of one customer, the Very Large Customer.

7. The proposed project design and location approved by this Final Decision are in the public interest considering alternative sources of supply, alternative locations, individual hardships, engineering, economic, safety, reliability, and environmental factors. *See* Wis. Stat. § 196.491(3)(d)3.

8. Construction and operation of the facility at the estimated cost will not impair the efficiency of the applicant's service, will not provide facilities unreasonably in excess of probable future requirements, and when placed in operation, will not add to the cost of service

without proportionately increasing the value or available quality thereof. *See* Wis. Stat. §§ 196.49(3)(b), 196.491(3)(d)5.

9. The proposed project as approved by this Final Decision will not have undue adverse impacts on environmental values including ecological balance, public health and welfare, historic sites, geological formations, aesthetics of land and water, and recreational use. *See* Wis. Stat. § 196.491(3)(d)4.

10. The proposed project as approved by this Final Decision will not unreasonably interfere with the orderly land use and development plans for the area. *See* Wis. Stat. § 196.491(3)(d)6.

11. The proposed project as approved by this Final Decision will not have a material adverse impact on competition in the relevant wholesale electric service market. *See* Wis. Stat. § 196.491(3)(d)7.

12. The proposed project uses brownfields to the extent practicable as it is located on a site that meets the definition of a "brownfield" in Wis. Stat. § 238.13(1). *See* Wis. Stat. § 196.491(3)(d)8.

13. As authorized, the project approved by this Final Decision will not affect waterways and wetlands and will not require permits from DNR for construction in waterways and wetlands. *See* Wis. Stat. ch. 30. However, the project will require permits from DNR for construction site erosion control and storm water handling. *See* Wis. Admin. Code ch. NR 216.

14. The proposed project approved by this Final Decision is subject to air permit requirements administered by the DNR under Wis. Stat. ch. 285. DNR has responsibility for

review of permit applications and issuance of air pollution control permits in accordance with the federal Clean Air Act (CAA) and Wisconsin statutes.

15. The proposed project approved by this Final Decision will require the applicant to obtain various permits from, provide notifications to, and coordinate with various federal, state, and local agencies.

16. Critical proposed facilities that could be damaged by flooding are not located in the 100-year flood plain. Consequently, there is no flood risk to the project per 1985 Executive Order 73.

17. Approval of the proposed project is in the public interest and is required by public convenience and necessity.

Conclusions of Law

1. The Commission has jurisdiction under Wis. Stat. §§ 1.11, 1.12, 44.40, 196.02, 196.025, 196.395, and 196.491, and Wis. Admin. Code chs. PSC 4 and 111, to issue a CPCN authorizing the applicant to construct and place in operation the proposed electric generation facilities described in this Final Decision and to impose the conditions specified in this Final Decision.

2. In issuing a CPCN for a public utility, the Commission has the authority under Wis. Stat. §§ 196.395 and 196.491(3)(e) to include conditions.

3. The proposed project complies with the Energy Priorities Law (EPL) as required under Wis. Stat. §§ 1.12 and 196.025(1).

4. This is a Type II action under Wis. Admin. Code § PSC 4.10(2) and required an EA under Wis. Stat. § 1.11.

5. Commission and DNR staff prepared an EA in compliance with Wis. Stat. § 1.11 and Wis. Admin. Code ch. PSC 4.

6. The proposed project, as conditioned by this Final Decision, satisfies the requirements of Wis. Stat. § 196.491(3)(d)3., will not have an undue adverse impact as defined in Wis. Stat. § 196.491(3)(d)4., and satisfies the other applicable CPCN criteria for approval.

7. Pursuant to Wis. Stat. § 15.02(4), the Commission has authority to delegate and redelegate to any officer or employee of the Commission any function vested in it by law.

Opinion

Applicable Statutory Criteria and Standard of Proof

The applicant is a public utility as defined in Wis. Stat. § 196.01(5)(a), engaged in rendering electric service in Wisconsin. The applicant is required to obtain a CPCN from the Commission pursuant to Wis. Stat. § 196.491 and Wis. Admin. Code chs. PSC 4 and 111, as the proposed project is a large electric generating facility as defined in Wis. Stat. § 196.491(1)(g) and has a capacity exceeding 100 MW.

The Commission is authorized to review and approve applications to construct large electric generating facility projects under the CPCN law. Wis. Stat. § 196.491(3). After reviewing the record compiled in the contested case proceeding, the Commission must determine whether the project serves the public convenience and necessity based on a number of factors relating to the need for and impacts of the project, employing the criteria outlined in the CPCN law and related statutes.

Since 1907, the Commission has regulated public utilities to ensure that “reasonably adequate service and facilities” are available to the public at rates that are “reasonable and just.”

Wis. Stat. § 196.03(1). The Commission's expertise in administering Wis. Stat. § 196.491 to determine which proposed projects are appropriate and in the public interest has long been recognized by Wisconsin courts. *See Wisconsin Power & Light Co. v. Pub. Serv. Comm'n of Wisconsin*, 148 Wis. 2d 881, 888, 437 N.W.2d 888, 891 (Ct. App. 1989); *see also Clean Wisconsin, Inc. v. Public Service Commission of Wisconsin*, 2005 WI 93, 282 Wis. 2d 250, 700 N.W.2d 768 (recognizing the Commission's expertise in reviewing proposed construction projects under Wis. Stat. § 196.491).

The Commission's review of the application is governed and guided by a number of statutory provisions, each of which is addressed and analyzed below. The Commission may impose any conditions it finds to be reasonable and necessary for its decision.

Pursuant to Wis. Stat. § 196.491(3)(d)2., the Commission must decide whether the project, if constructed, will satisfy the reasonable needs of the public for an adequate supply of electric energy. The Commission must also determine whether the project is in the public interest, considering alternative sources of supply, alternative locations, individual hardships, engineering, economic, safety, reliability, and environmental factors pursuant to Wis. Stat. § 196.491(3)(d)3. The Commission must further determine whether the project complies with the EPL, Wis. Stat. §§ 1.12, and 196.025(1).

The statutory analysis also requires the Commission to consider whether the proposed project will have an undue adverse impact on other environmental values, as provided under Wis. Stat. § 196.491(3)(d)4., and the Commission must comply with the Wisconsin Environmental Policy Act (WEPA), pursuant to Wis. Stat. § 1.11 and Wis. Admin. Code ch. PSC 4.

The above statutory provisions work together with other laws and require the Commission to weigh whether the proposed project will substantially impair the efficiency of the applicant's service; provide facilities unreasonably in excess of probable future requirements; or add to the cost of service without proportionately increasing the value of service as specified by statute. *See* Wis. Stat. §§ 196.49(3)(b) and 196.491(3)(d)5.

The Commission must also find the record sufficient to support a conclusion that the project will not unreasonably interfere with the orderly land use and development plans for the area involved. Wis. Stat. § 196.491(3)(d)6. Additionally, the Commission must find that the proposed project will not have a material adverse impact on competition in the relevant wholesale electric service market, under Wis. Stat. § 196.491(3)(d)7.

In light of the statutory requirements imposed by Wis. Stat. §§ 1.12(4), 196.025, and 196.491(3)(d), the Commission is tasked with deciding which site alternative to authorize for the project and must find that the project uses brownfields to the extent practicable. Wis. Stat. § 196.491(3)(d)8.

Determining whether a proposed project is in the public interest requires a high degree of discretion, judgment, and technical analysis. Such decisions involve intertwined legal, factual, value, and public policy determinations. The Commission, as the finder of fact, is charged with sifting through all of the information and applying the statutory criteria to reach a well-reasoned decision. In doing so, the Commission uses its experience, technical competence, and specialized knowledge to determine the credibility of each witness and the persuasiveness of the highly technical evidence presented on each issue.

With regard to evidentiary determinations, the applicable burden of proof functions in tandem with the applicable standard of proof. The CPCN law, Wis. Stat. § 196.491(3), unlike other provisions of Chapter 196, does not assign a burden of proof to any party with regard to any determination that the Commission must make.[2] Nor does the CPCN law itself specify a standard of proof (i.e., quantum of evidence) that must be found in order for the Commission to make one determination rather than another. This is contrasted with other sections of Wis. Stat. ch. 196, which require that certain determinations be made only upon "clear and convincing evidence" or "a preponderance of the evidence."[3]

The CPCN law provides that the Commission "shall approve an application . . . for a certificate of public convenience and necessity only if the commission determines . . ." that a proposed project will be free of specified adverse impacts and in the public interest, as noted above. These determinations are fact-intensive, and the Commission's action in approving or denying an application ultimately depends on the facts found by the Commission. As such, the standard of proof that the Commission must apply can be logically inferred from the standard of review set forth in Wis. Stat. § 227.57(6), which requires a court to remand a CPCN decision back to the Commission if its decision "depends on any finding of fact that is not supported by substantial evidence in the record."

As the courts have explained, "the substantial evidence test is not weighing the evidence to determine whether a burden of proof is met. Such tests are not applicable to administrative decisions." *Wisconsin Ass'n of Mfrs. & Commerce, Inc. v. Pub. Serv. Comm'n*, 94 Wis. 2d 314, 321, 287 N.W.2d 844, 847 (Ct. App. 1979). The substantial evidence test simply requires that

[2] *See*, *e.g.,* Wis. Stat. §§ 196.499(5)(am), 196.504(8).
[3] *See*, *e.g.,* Wis. Stat. §§ 196.499(5)(d), 196.64(2), 196.795(7)(c).

there be enough evidence for a finding to be reasonable. *See Kitten v. DWD*, 2002 WI 54, 252 Wis. 561, 644 N.W.2d 649; *see also Gateway City Transfer Co. v. Pub. Serv. Comm'n*, 253 Wis. 2d 397, 405, 34 N.W.2d 238, 242, 1948 WL 60150 (1948). In other words, a court must determine whether the Commission used its technical competence and specialized knowledge to determine the persuasiveness of the evidence and reach a well-reasoned decision.

In light of this standard of proof, for each finding that the CPCN law requires the Commission to make, the Commission focuses on evaluating the evidence to identify the finding that is supported by substantial evidence. The standard of proof applicable to CPCN determinations renders the question of an applicable burden of proof a subordinate consideration. A burden of proof consists of "the burden of going forward with evidence of the alleged fact; and the burden of persuading the trier of fact that the alleged fact is true," known as the burden of persuasion.[4] The import of a burden of proof is generally effectuated through the burden of persuasion, rather than the burden of going forward. Therefore, although in administrative hearings such as this one the common-law rule that the moving party has the burden of proof is generally observed,[5] observation of this rule is fulfilled by evaluating the evidence to determine whether a finding is supported by substantial evidence.

Party and Public Participation

The Commission's proceeding on this CPCN application developed a robust record on all of the issues that the Commission must consider in reviewing a proposed project under Wisconsin law.

[4] *Hochgurtel v. San Felippo*, 78 Wis. 2d 70, 86, 253 N.W.2d 526 (1977).
[5] *Sterlingworth Condominium Ass'n, Inc. v. Wis. Dept. of Natural Res.*, 205 Wis. 2d 710, 726, 556 N.W.2d 791 (Ct. App. 1996).

Members of the public commented both in writing and through appearances at the public hearings about the potential impact that this project will have on them and their local communities. Commission received 553 public comments through its website and several oral and written comments at the public hearings. The comments expressed concerns related to impacts on the environment, air quality and health impacts, and proximity to residences and other dwellings as previously mentioned.

The parties in this case offered thoughtful, extensive, and helpful testimony and other evidence, and argument. The Commission acknowledges the thoughtful, extensive, and helpful testimony from the intervenors in this proceeding. This information assisted the Commission in its review of the application, in further testing the technical evidence and adding alternative analysis, and in making its determination on the application.

Project Description

The applicant proposes to construct and operate a new approximately 1,100 MW natural gas electric generation facility at the site of its existing South Oak Creek Facility in the City of Oak Creek, Milwaukee County, Wisconsin. The proposed project consists of five new GE 7FA 05 CTs, each with a nominal capacity of 220 MW. New infrastructure required for the project will include a natural gas tie-in to the proposed Rochester Lateral gas pipeline and electric interconnections to the existing Oak Creek Generating Site (OCGS) 138 kilovolt (kV) and 345 kV switchyards. The proposed project will be capable of blending up to 10 percent hydrogen by volume with natural gas. Potential future upgrades could enable 30 percent hydrogen by volume with the use of additional equipment, although such additional equipment is not a part of this proposed project.

The project will be sited at the applicant's existing 1,000-acre parcel of land 15 miles south of Milwaukee. The applicant's proposed site would locate the CTs west of the existing Elm Road Generating Station. The alternate site would locate the CTs east of the existing Oak Creek Liquefied Natural Gas (LNG) Plant.

The existing Oak Creek Switching Station consists of a 138 kV ATC switchyard and 345 kV transmission facilities. There are seven 138 kV transmission lines connected to the ATC switchyard in addition to two 345 kV transmission lines and one 230 kV transmission line. The existing 138 kV switching station will provide connection to two of the CTs. The existing 345 kV station will provide connection to three of the CTs. Other than a new gen-tie interconnection facility within the existing OCGS, no other transmission lines would be needed for the proposed project.

The project will use the existing OCGS point of interconnection to connect to the transmission system. With the retirement of Oak Creek Units 5 and 6 and the planned retirement of Oak Creek Units 7 and 8, the applicant plans to use the Midcontinent Independent System Operator, Inc. (MISO) Generating Facility Replacement Process, which enables a generating facility owner to replace existing generation with new generation at the same point of interconnection.[6] In docket 137-CE-211, American Transmission Company LLC (ATC) is seeking Commission approval to perform work at the nearby Elm Road Substation that could enable interconnection of three of the proposed Oak Creek CTs.

The proposed project will be fueled by natural gas without the capability to use a backup fuel. Natural gas will be supplied by Wisconsin Electric Power Company-Gas Operations. To

[6] Using an existing point of interconnection can expedites the review process, as candidate generators do not have to proceed through the usual, longer MISO interconnection queue for new generation at a point of interconnection.

operate at its maximum potential, the applicant asserts that the project requires a tie-in with up to a 24-inch pipe diameter to the Rochester Lateral metering station. In docket 6630-CG-139, the applicant is proposing to construct the Rochester Lateral Project. In docket 6630-CG-140, the applicant is also proposing to build a liquified natural gas facility at the Oak Creek site that would store enough backup fuel to support full load operation of the proposed facility for up to 7 days. New facilities for the natural gas infrastructure will include up to a 24-inch diameter pipeline from the Rochester Lateral metering station, to be installed at the OCGS, to the CT units. Approximately 600 ft of 24-inch diameter pipeline will be installed from the new metering station on the OCGS to the proposed project. (PSC REF#: 505446.)

The applicant's estimated cost for the proposed project is $1.205 billion, with an additional AFUDC estimate of $138.6 million. (PSC REF#: 505446 confidential, PSC REF#: 505447 public.) The estimated costs were developed in 2024 dollars and escalated based on a 2028 commercial-operation date, and do not include AFUDC. The cost estimate includes project direct costs, project indirect costs, construction indirect costs, contractor fees, and general and administrative expenses needed to construct the proposed project. Also included in the estimate are the owner's costs for development and construction of the proposed project.

Project Need and Alternatives

Prior to approving the proposed project, the Commission must make several interrelated, statutorily-required determinations that are informed by modeling and analysis provided in the record. The Commission's determination whether the project, if constructed, will satisfy the reasonable needs of the public for an adequate supply of electric energy (Wis. Stat. § 196.491(3)(d)2.); whether the project is in the public interest considering alternative sources of

supply, alternative locations and other factors (Wis. Stat. § 196.491(3)(d)3.); and whether the project will substantially impair the efficiency of the applicant's service, provide facilities unreasonably in excess of probable future requirements, or add to the cost of service without proportionately increasing the value of service as specified by statute (Wis. Stat. §§ 196.49(3)(b) and 196.491(3)(d)5.) all fall under this category. Each requires consideration of why the applicant needs the proposed project, its likely future effects, and what other alternatives might address the need.

Applicant's Description of Project Need

In the application, the applicant's stated that the purpose of the proposed project is primarily to serve a significant new load source in the Interstate 94 (I-94) corridor expected to start in 2025. *Id.* at 2-7 or 54 of 177. This new load would be in addition to a range of possible growth that the applicant expects in its extant system demand and load forecasts. The applicant provided significantly more detailed information about the I-94 corridor load increase in rebuttal testimony.

On rebuttal testimony, the applicant noted that, it had been widely and publicly reported that Microsoft was in the process of developing a very large data center in Mount Pleasant, Wisconsin, and had committed to investing approximately $3.3 billion in the facility. Rebuttal-WEPCO-Stasik-r-6 (PSC REF#: 537166 confidential, PSC REF#: 537167 public), Ex.-WEPCO-Stasik-4 (PSC REF#: 533610). Construction at the Microsoft site began in November of 2023 and was well underway at the time rebuttal testimony was filed. Rebuttal-WEPCO-Stasik-6 (PSC REF#: 537166 confidential, PSC REF#: 537167 public); Ex.-WEPCO-Stasik-6 (PSC REF#: 533612); Ex.-WEPCO-Stasik-7 (PSC REF#: 533613). Microsoft has announced

that Phase 1 of the development will require 450 MW of electricity. Ex.-WEPCO-Stasik-8 (PSC REF#: 533614).

The applicant provided evidence of contractual obligations related to the costs of the proposed project. Ex.-WEPCO-Stasik-12 (PSC REF#: 533648 confidential, PSC REF#: 533649 public). The applicant asserted that this evidence demonstrated the need for the project, ensured that other customers would be protected from bearing the cost of the project if it was no longer needed, and indicated its commitment to protecting other customers from costs to serve one customer, termed the Very Large Customer. Rebuttal-WEPCO-Stasik-7-8, 15 (PSC REF#: 537166 confidential, PSC REF#: 537167 public). The applicant filed a Very Large Customer tariff with the Commission in docket 6630-TE-113 on March 31, 2025. Ex.-WEPCO-Stasik-28 (PSC REF#: 540567).

The applicant stated that another need driver was the permanent retirement of Oak Creek Units 5 and 6, as well as the publicly-announced expected retirement of Oak Creek Units 7 and 8 by the end of 2025, which the applicant stated would create a capacity need in the applicant's generation portfolio that would require alternate resources to fulfill.

The applicant stated that it had developed a comprehensive generation reshaping plan (GRP), and that the project was an integral part of the GRP. Ex.-WEPCO-Application-CPCN Application: 2-22 or 69 of 177 (PSC REF#: 505447.) The applicant asserted that the purposes of its GRP were to maintain and enhance electric reliability, comply with recently implemented and anticipated future MISO resource adequacy construct and resource accreditation changes; meet substantial new load growth, ensure compliance with CAA rule modifications, and support the state of Wisconsin's carbon reduction goals. Ex.-WEPCO-Application-Volume III-

Appendix B -Need and Alternatives Analysis: 1 (PSC REF#: 496538). The applicant asserted that the intermittent renewable generation resources being built in the system, such as wind and solar, introduced complexity in ensuring reliability, resiliency, and transmission grid stability. Ex.-WEPCO-Application-CPCN Application: 2-1 or 48 of 177 (PSC REF#: 505447 at 48). The applicant stated that the objectives of its GRP were maintaining reliability, ensuring resiliency, minimizing environmental impact, capturing economic value, and managing market risk. Ex.-WEPCO-Application-Volume III-Appendix B – Need and Alternatives Analysis: 4 (PSC REF#: 496537 confidential, PSC REF#: 496538 public).

The applicant stated that CTs possess high power density, flexibility, reliability, fast ramp-up and ramp-down capability, and dispatchability. Ex.-WEPCO-Application-CPCN Application: 2-3 to 2-4 or 50-51 of 191 (PSC REF#: 505447). The applicant asserted that these characteristics complemented those of the applicant's evolving resource mix and can help ensure energy security as its electric fleet continues to evolve. The applicant stated that the proposed CT facility would be dispatchable to meet both peak and baseload demand for its customers.

Applicant's Modeling Efforts

The applicant provided capacity expansion plan modeling in support of its application. The applicant used the PLEXOS software program, which seeks to optimize a portfolio of electric generation, storage, energy efficiency, and demand response resources to ensure that future firm capacity and energy needs can be met in a cost-effective manner. The applicant's modeling studied a 30-year time horizon and included information about expected load growth, new loads, environmental or MISO rules, inflation, natural gas prices, market energy and capacity costs, and other inputs. The program then developed a lowest cost resource portfolio

based on existing and potential new resources to ensure appropriate levels of energy and capacity for the applicant's modeled electrical load and demand needs.

The applicant developed four planning futures that each contained unique modeling assumptions such as demand and energy growth, natural gas prices, general inflation rates, the potential cost of carbon dioxide emissions, and renewable tax credit levels. The applicant also modeled potential ways in which greenhouse gas regulations, as implemented by the U.S. Environmental Protection Agency (EPA), could be enforced in the future. A number of supply alternatives, including solar, battery energy storage systems (BESS), wind, energy efficiency, demand response, combined cycle facilities, CTs with and without carbon sequestration, and RICE units were all available for the model to potentially select. In addition to native load growth assumptions, the applicant also included the anticipated new I-94 corridor load as part of its base model assumptions.

The applicant asserted there is a need for the proposed project, partially due to a new load expected in the applicant's system in 2026. The applicant also noted the impact of the implemented or expected retirement of approximately 1,085 MW of coal-fired electric generation at the site of the proposed project, with the retirement expected to occur by December 2025. The applicant stated that its expected capacity positions, by season, over the next ten years demonstrate an ongoing need for additional resources to meet its planning reserve margin (PRM). The PLEXOS program reviewed the applicant's seasonal capacity needs under the MISO resource adequacy construct and optimized a portfolio from the modeled resource list to ensure the applicant would have sufficient capacity in each season. The applicant stated that the proposed project featured some key resource characteristics that other resource types lacked,

such as dispatchability and fast ramping to load, and asserted that the project would beneficially diversify of the applicant's generation portfolio to avoid dependence on one resource type.

Some of the modeling runs performed by the applicant involved direct comparison of the proposed project against equivalent capacity amounts of different resource types. In these comparisons, the different resource types were "forced in" to the model, meaning the model was required to pick either the proposed project or the alternate resource type. Then, the overall costs of the two portfolios were compared, and a net present value (NPV) cost was developed for each compared alternative. If the overall portfolio NPV cost of the proposed project was lower, the proposed project demonstrated lower costs to customers; if the overall portfolio NPV cost of the alternate resource was lower, the proposed project demonstrated higher costs to customers. Direct comparison showed that the proposed project had a lower cost when compared to BESS, solar/BESS hybrid units, RICE, and combined cycle units with carbon sequestration. Other runs involving wind or combined cycle units without carbon sequestration showed the possibility of an NPV cost, though other considerations made those alternatives infeasible or not constructible within the time horizon required to meet the applicant's anticipated capacity needs. By performing these comparative runs, the applicant could partially assess the value that the proposed project might add to its overall generation portfolio. This modeling demonstrated that the proposed project was a lower-cost alternative compared to many alternative technologies, while other technology types would have required additional considerations that might outweigh their potential benefits.

Two MISO Resource Adequacy constructs were included in the modeling. Specifically, the seasonal construct and DLOL accreditation methodology were included, with DLOL being

added to the model at a later stage at Commission staff's request. MISO's reliability-based demand curve (RBDC) was narratively discussed by the applicant in its application materials, but was not actively modeled. The seasonal construct was addressed by assigning firm capacities to each resource type, both existing and new, in the applicant's generator portfolio. Existing resources had accreditation assigned based on appropriate criteria, which could include historical generation performance and class type. New resources, including the generic and project specific alternatives from which the model could select, were assigned estimated capacity accreditations for each season. These values were multipliers to the installed capacity values of particular resource types and affected how the PLEXOS model selected the resources. The applicant's implementation of the seasonal construct in PLEXOS in this proceeding is consistent with its previous construction applications before the Commission.

Commission staff requested the applicant also to directly implement DLOL into both the firm capacities of the resources and the PRM values in the model in all seasons. Previously, a PRM based on installed capacity (ICAP) was used in this proceeding and in prior Commission submissions by the applicant. The modeling was updated to use DLOL-based firm capacities and PRM values that incorporated DLOL. This modeling update continued to demonstrate the need for the full proposed project, as the model continued to select all five of the proposed CTs as part of the optimal generation portfolio.

The applicant asserted that an anticipated large new load was a key driver for the proposed project, in conjunction with planned retirements of older generation units. It stated that the proposed project has characteristics such as dispatchability, fast ramping, and good seasonal accreditation, and would contribute to an overall diversification of the generation portfolio that

other resources would provide. The applicant stated that it has been in the process of changing its generation portfolio and that other recently approved projects have been focused on intermittent resources that do not necessarily have the strong seasonal attributes the proposed project can provide, citing solar resources during the winter season as one example. The proposed project will be able to provide energy when called upon and can run for an extended period of time at full output, if needed.

Intervenors' Review of the Applicant's Modeling Efforts

Several intervenors raised concerns about the applicant's modeling, some of which was explored in subsequent data requests from Commission staff. Clean Wisconsin witness Chelsea Hotaling used different modeling assumptions in an updated PLEXOS modeling of the applicant's portfolio, including adding more energy efficiency and demand response options, moving back the availability dates of CTs and combined cycle units, reducing BESS capital costs to change how tax credits may be implemented, allowing for RICE units to be selected in smaller sizes, and removing the Interstate 94 corridor load. Direct-CW-Hotaling-r-15-16 (PSC REF#: 537100). Clean Wisconsin witness Douglas Jester expressed concerns that the new load cited by the applicant may be overstated or may not happen at all, and that BESS capital costs were overstated and BESS arbitrage values were not properly placed in the model. Direct-CW-Jester-r-11-12 (PSC REF#: 533629). Clean Wisconsin witness Stacy Sherwood averred that the applicant did not model a sufficiently robust energy efficiency and demand response supply side alternative set, which may have avoided the need for one or more of the CTs. Direct-CW-Sherwood-10 (PSC REF#: 529614). Clean Wisconsin witness Michael Goggin asserted that wind resources were unreasonably restricted in the model, as well as that out of state wind

resources should have received more consideration. Direct-CW-Goggin 4-5 (PSC REF#: 529615).

CUB witness Edward Burgess raised concerns about some of the same modeling issues raised by Clean Wisconsin, namely that the applicant's input assumptions may have skewed the modeling results to select the proposed project. Direct-CW-Burgess 6-7 (PSC REF#: 537180). Witness Burgess also believed that unforced capacity (UCAP) PRM and DLOL should have been implemented in the modeling by the applicant; that BESS costs were overstated in the model; that more demand response and energy efficiency should have been modeled; and that the new load may be overstated. AEU witness Miriam Makhyoun also had concerns, including lack of certain types of alternatives, limitations on the amount of wind resources in the model, the lack of DLOL inclusion, and incorrect implementation of the investment tax credit, among other topics. Direct-AEU-Makhyoun (PSC REF#: 537120).

In summary, a number of intervenors contested a variety of assumed inputs and implementation methodologies used by the applicant to produce modeling results in support of the proposed project.

Commission Staff's Review of the Applicant's Modeling Data

Commission staff performed a comprehensive review of the applicant's modeling, including a thorough review of the input assumptions and original run results. Based on this review, Commission staff asked a number of data request questions covering a variety of topics, including: updating the portfolio modeling to include continuation or upgrade costs of other facilities associated with the applicant, such as Point Beach and Elm Road; inclusion of costs of ancillary facilities that may provide support to the proposed project; modeling sensitivities

looking at possible pricing changes; modeling sensitivities where the load forecast for the new load is lowered or removed; modeling sensitivities directly comparing the proposed project to equivalent amounts of different resource types to review NPV differences; modeling sensitivities reviewing different MISO PRM variants (ICAP, UCAP, UCAP with DLOL); and modeling sensitivities where additional generic resource types are added, among others.

The applicant worked with Commission staff and supplied modeling responsive to all of the requested runs, including those runs potentially showing that a different resource type could replace some or all of the proposed project in an optimized portfolio. Generally, the runs were of two types: comparison runs where the proposed project and a chosen alternative were "forced in" so an NPV comparison could be made, and "unconstrained" runs where the model was able to select freely from the available resources. Both types of runs added useful information to the record. The comparison runs allowed Commission staff to evaluate the potential benefit the proposed project would have over alternate resource types using the same amount of firm capacity, and to identify candidate technologies that were competitive with the proposed project. The unconstrained runs allowed Commission staff to determine whether the project, in part or in whole, was optimally selected by the model when it was not forced in as part of the resource portfolio. In the aggregate, the modeling helped to clearly demonstrate the role the proposed project would play in the applicant's resource portfolio.

Over the hundreds of runs provided by the applicant and reviewed by Commission staff, the proposed project was routinely selected as a part of the optimized portfolio in unconstrained runs. The project was selected as the less-expensive option when compared to equivalent capacity amounts of alternate resources, with the exception of combined cycle without carbon

capture and wind resources. Ex.-PSC-DRR-r: Responses PSCW-DG-6.9 and 6.10 (PSC REF#: 531743). In both of these cases, other considerations precluded those resources from being reasonable alternatives to the proposed project. In the case of combined cycle units without carbon sequestration, there was low probability that sufficient units could be constructed in time to serve the new load given the timing of the application. For wind resources, the evidentiary record did not indicate sufficient wind resources would be available in the state of Wisconsin to meet the applicant's need timeline, though consideration of out-of-state wind resources could possibly change this conclusion. In a single unconstrained sensitivity run, with a significantly lower new load and no other considerations, only a portion of the project was optimally selected. However, when the reduced new load is coupled with other considerations in the modeling assumptions, the full proposed project is again optimally selected. Ex.-PSC-DRR-r: Responses PSCW-DG-6.9 and 6.10 (PSC REF#: 531743). Exceptions notwithstanding, the majority of the evidence in the record supports the conclusion that the proposed project is a part of the applicant's optimal, lowest cost generation portfolio going into the future.

The applicant did include both energy efficiency and demand response on the supply side of the model, options which the PLEXOS program could select in addition to the proposed project. The applicant noted that it had complied with its legally required energy efficiency obligations, and that demand response programs can take time to develop and can have uncertain levels of participation. The applicant also asserted that, due to the size of the proposed project, no reasonable amount of energy efficiency or demand response could fill the need for the project, though perhaps it could offset one or more individual CTs. Furthermore, energy efficiency and demand response could not match the project's dispatchability and ramping rate. Thus, it is

reasonable to conclude that energy efficiency and demand response are not a feasible or cost-effective substitute for the proposed project, despite its inclusion in the modeling.

The applicant stated that its alternative resource costs were based on actual or expected costs for projects that would be submitted to the Commission for consideration. Commission staff reviewed the costs of the proposed project and found that, when compared with information from the Energy Information Administration, the modeled costs appeared reasonable. Direct-PSC-Grant-r-28 (PSC REF#: 536787).

CUB and AEU strongly disagreed with the applicant's estimated costs of alternatives, particularly for BESS. CUB witness Burgess argued that the costs for BESS resources in the model should be reflective of national average costs information provided by the Energy Information Administration (EIA). Direct-CUB-Burgess-42-45 (PSC REF#: 537179 confidential, PSC REF#: 537180 public). AEU witness Miriam Makhyoun likewise relied on data from the EIA, along with the National Renewable Energy Laboratory (NREL) and Lazard. Direct-AEU-Makhyoun-r-11-12. (PSC REF#: 537119 confidential, PSC REF#: 537120 public). Applicant witness Brandon Gerlikowski argued that the EIA data was stale as it was based on information from 2019 and pointed out that it was not specific to Wisconsin. Rebuttal-WEPCO-Gerlikowski-r-24, 40 (PSC REF#: 537165). Witness Gerlikowski stated that the applicant's alternative resource cost assumptions were based on actual or expected costs for projects that would be submitted to the Commission for consideration, and were more accurate. *Id.* at 21-24, 56. Witness Burgess countered that cost comparisons from similar projects were not valid because they were based on a project with significant *force majeure* cost overruns. Surrebuttal-CUB-Burgess-r-15-18 (PSC REF#: 537185 confidential, PSC REF#: 537186 public).

Commission staff compared the applicant's estimated costs for alternate resources to costs for similar projects in approved or pending dockets before the Commission and found that they were consistent. Surrebuttal-Grant-5 (PSC REF#: 536068).

National average costs are indicative of what the alternative technologies may cost aggregated across multiple parts of the country, but are not as compelling as the actual prices being realized for Wisconsin generation projects. However the specifics of such projects used for comparison are worthy of consideration. When costs were left at the levels modeled by the applicants, Commission staff noted that the proposed project continued to demonstrate NPV savings in comparison with alternatives, even after the project price was increased by 25 percent.

Commission staff also reviewed the fixed and variable costs of the project and found them to be comparable with costs in prior comparable dockets. Commission staff also requested that the costs associated with projects ancillary to the proposed project be modeled in. The applicant provided this review in both a fixed and variable-cost manner. The proposed project was selected in all of the runs in which these costs were added, suggesting that the proposed project costs were implemented reasonably.

CUB witness Burgess and Clean Wisconsin witness Hotaling also argued that the cost assumptions for the modeled alternatives for energy efficiency and demand response would allow for more of those resources to be included in the modeling. Direct-Burgess-30-33 (PSC REF#: 537179 confidential, PSC REF#: 537180https://apps.psc.wi.gov/pages/viewdoc.htm?docid=%20527429 public), Direct-CW-Hotaling-19-20 (PSC REF#: 537100). The applicant provided modeling that allowed energy efficiency and demand response to be included as selectable capacity resources using cost

assumptions similar to those used in projects that have been approved or pending dockets before the Commission. Rebuttal-WEPCO-Gerlikowski-55-57 (PSC REF#: 537164).

Commission staff also reviewed the applicant's stated capacity position and compared the reserve margins both with and without the optimized portfolio. As the PLEXOS model solves against having sufficient capacity reserves in each season for each year reviewed, Commission staff understood that the applicant's capacity position would be sufficient using the optimized portfolio, which includes the proposed project. To the extent that multiple planning reserve margin types were also investigated (ICAP, UCAP, UCAP with DLOL modifications) and the proposed project was still part of the optimized portfolio, it is reasonable to conclude that the proposed project is a necessary part of that applicant's portfolio, particularly since the modeling came out the same way using multiple methodologies.

Commission staff compared the recent, historic site capacity factor for the existing Oak Creek coal units and found a site capacity factor of approximately 37 percent, with an average annual energy output of approximately 4,000,000 megawatt-hours (MWh). As modeled, the proposed project was assumed to be limited to a maximum annual capacity factor of 20 percent based on the current EPA greenhouse gas regulations, though that number could be exceeded if the EPA rules are vacated. The actual model runs showed the proposed project operating at a capacity factor lower than that value, which is consistent with the intermittent nature with which CTs typically operate. Commission staff review of the modeled capacity factors for the proposed project were therefore believed to be reasonable. The results also showed that, if the EPA greenhouse gas rules remain in effect, much of the former energy production from the

retired Oak Creek coal units would need to be replaced by resources other than the proposed project, which is principally a capacity resource.

For the years 2017 through 2023, Commission staff compared both the historic load to the load forecast, with historical load data as filed in the annual reports and the load forecast being part of the PLEXOS model input assumptions. The applicant's baseline load forecast information across the four developed planning futures was consistent with historical loads reported in the annual reports. In additions, the new I-94 corridor load was added on top of the baseline load forecast. Commission staff review of the new load associated with the I-94 corridor was also consistent with Commission staff's past understanding of the size and timing of the new load. With the I-94 load added to the forecast, the forecasted electrical demand and load were understandably higher than historical values. Even in the absence of the I-94 corridor load, each planning future assumed a modest load growth that Commission staff found reasonable.

The Commission finds that the proposed project, as approved by this Final Decision, will be a part of the least cost, optimized portfolio that the applicant will need to serve existing and new loads while simultaneously retiring older generation resources. The proposed project offers several featuresthat complement the applicant's evolving, diverse resource mix, including dispatchability, fast ramping capability, and an ability to run for extended periods of time. Increasingly, the applicant and other entities in the state of Wisconsin are installing additional intermittent, renewable resources that cannot always produce electricity when needed. The proposed project augments the capability of the applicant to reliably serve load at all times, thus enhancing reliability for the applicant's customers.

With the anticipated retirement of older thermal generation units and an expected new load in the I-94 corridor, the applicant will need a portfolio of resources to offset the retiring capacity and serve the new load while maintaining reliability for all customers. The proposed project was part of the optimally chosen resource portfolio in almost all of the unconstrained runs, where the model was free to pick among all resources, that Commission staff reviewed. In head-to-head comparisons with equivalent amounts of other resources, the proposed project had NPV benefits compared to many alternative resources, including solar/BESS hybrids, combined cycle units with carbon sequestration, BESS, and RICE units. For the direct comparisons where other resources had a lower NPV cost than the proposed project, other reasons made the alternate resources infeasible to consider as replacements, including the availability of a sufficient amount of the alternate resource in the time required, as well. Overall, the modeling routinely selected the proposed project as part of an optimized, least cost resource portfolio over a variety of possible future conditions, EPA regulatory sensitivities, and including evolving MISO rules being implemented.

While demand response is not a viable alternative to the proposed project, analysis in the record suggests that it is likely a source capable of significant, cost-effective capacity for the applicant to fill, in part, the future need it indicates will remain in addition to the proposed project. The Commission addresses this issue later in this Final Decision by adopting an order condition that requires the applicant to submit an analysis of a robust and comprehensive future demand response program in its next rate case.

Energy Priorities Law and Generation System Alternatives

When reviewing a CPCN application, the Commission also considers Wis. Stat. §§ 1.12 and 196.025(1), the EPL, which establish the preferred means of meeting Wisconsin's energy demands. Wisconsin Stat. § 1.12(4) provides as follows:

> In meeting energy demands, the policy of the state is that, to the extent cost effective and technically feasible, options be considered based on the following priorities, in the order listed:
> (a) Energy conservation and efficiency.
> (b) Noncombustible renewable energy resources.
> (c) Combustible renewable energy resources.
> (cm) Advanced nuclear energy using a reactor design or amended reactor design approved after December 31, 2010, by the U.S. Nuclear Regulatory Commission.
> (d) Nonrenewable combustible energy resources, in the order listed:
> 1. Natural gas.
> 2. Oil or coal with a sulphur content of less than 1 percent.
> 3. All other carbon based fuels.

Wisconsin Stat. § 196.025(1) requires that the Commission implement these priorities in making all energy-related decisions to the extent they are cost-effective, technically feasible, and environmentally sound.

The proposed project will primarily be a natural gas-fired electric generation facility. Energy conservation and efficiency, noncombustible renewable energy resources, combustible renewable energy resources, and advanced nuclear energy resources are higher priorities than the proposed project. The EPL encompassed in Wis. Stat. § 1.12(4) is not a strict mandate to be mechanically applied. *Clean Wisconsin, Inc. v. Pub. Serv. Comm'n of Wisconsin*, 2005 WI 93, ¶ 104, 282 Wis. 2d 250, 336, 700 N.W.2d 768, 810. Instead, the policy expressed in the EPL is implemented by the Commission's overall pattern of decisions. *Id*., ¶ 109. When evaluating a CPCN application, the Commission must harmonize the EPL with the CPCN statute, Wis. Stat. § 196.491. *Id*., ¶¶ 104, 121.

The applicant asserted that the proposed project would be an important piece of its optimal generation portfolio, providing necessary characteristics such as dispatchability, fast ramping, and resource diversification to complement other intermittent, non-dispatchable renewable generation that would be added to the same portfolio. Ex.-WEPCO-Application-CPCN Application (PSC REF#: 505446 confidential, PSC REF#: 505447 public). The applicant asserted that no higher priority options in the EPL could provide reliable and dispatchable generation and were also cost-effective and technically feasible.

CUB witness Edward Burgess, along with Clean Wisconsin witnesses Hotaling and Sherwood, expressed concerns that insufficient energy efficiency or demand response was represented in the modeling. Direct-CUB-Burgess-27-33 (PSC REF#: 537179 confidential, PSC REF#: 537180 public), Direct-CW-Hotaling-r-19 (PSC REF#: 537100), and Direct-CW-Sherwood-12 (PSC REF#: 529614). These witnesses argued that cost assumptions included in the modeling for these resources were inappropriately valued and could be a cost-effective alternative to the proposed project. These witnesses, as well as WLGCC witness Allison Carlson, also proposed updating how energy efficiency and demand response were modeled, to better align their inclusion more with the modeling of other programs. Surrebuttal-WLGCC-Carlson-3 (PSC REF#: 536053).

The Commission finds the evidence presented by the applicant and reviewed by Commission staff demonstrated that neither energy efficiency and conservation nor noncombustible renewable resources were cost-effective or technically feasible alternatives to address the needs for the proposed project. The applicant's energy and demand forecast already has accounted for the existing energy efficiency and demand response programs, which is

represented as a reduction to the native load of the utility. With the expected inclusion of a significant new load in the applicant's service territory, the amount of energy efficiency and demand response required to offset the new load would be infeasible. The applicant argued that it had met its obligations with respect to energy efficiency through its participation in Focus on Energy and statutorily it cannot be required to do more. The applicant asserted that demand side programs would likely require an enhanced incentive for more customer participation given the risk to service interruptions that demand response can make.

Despite these statements, the applicant did provide high-level, supply-side estimates for additional energy efficiency and demand response programs that the PLEXOS model could select. Even with these programs available, the model still chose the full proposed project in almost all of the unconstrained runs reviewed, meaning that energy efficiency and demand response are complementary to, rather than a replacement for, the proposed project. These results support the conclusion that energy efficiency and demand response are not a replacement for the proposed project.

Non-combustible renewable resources were also evaluated in the model. Solar and solar/BESS hybrid units of equivalent firm capacity were found to have higher NPV costs than the proposed project. Wind units, while cost competitive, were not available in sufficient quantity within the state of Wisconsin to meet the expected need timeline for the applicant. Moreover, both resource types were picked in addition to, rather than in replacement of, the proposed project, thereby indicating that neither are cost effective or technically feasible replacements for the proposed project. Combustible renewable resources and advanced nuclear resources are generally not widely used in the state of Wisconsin or are otherwise unavailable,

meaning they were not considered technically feasible and therefore ignored. Thus, that left the proposed project as the next highest ranking EPL priority.

Ultimately, the applicant determined that none of these alternatives could meet the capacity need in a more cost-effective manner than the proposed project.

The Commission concludes that the applicant's proposed project, as approved in this Final Decision, complies with the EPL. Based on the inclusion of other, higher ranking EPL priority items being chosen by the model in unconstrained runs while the proposed project is also still chosen, the Commission considers the proposed project to have met the requirement. The Commission concludes that energy efficiency, conservation, or any of the other resources listed higher than natural gas resources in the EPL are not cost-effective or technically feasible options that would meet the applicant's reliability and resiliency needs.

Need and Modeling Conclusions

The applicant anticipates demand in its service territory to increase significantly in the near term due to one large data center being built in Mount Pleasant which will require large amounts of firm electricity to serve. After intervenors argued that the new load was speculative, the applicant provided substantial evidence that the load would materialize and of customer protections in place in case the new load does not materialize. Ex.-WEPCO-Stasik-12 (PSC REF#: 533648 confidential, PSC REF#: 533649 public). Wisconsin Stat. § 196.03(1) requires that the applicant serve all of its customers' energy needs. This is a mandatory duty and can only be excused for reasons outside the utility's control. *Waukesha Gas & Elec. Co. v. Waukesha Motor Co.*, 190 Wis. 462, 209 N.W. 590 (1926); *N. States Power Co. v. Pub. Serv. Comm'n*, 246 Wis. 215, 228, 16 N.W.2d 790 (1944) ("[T]he legislature has determined that the

public interest requires that public utilities shall, within their undertaking, furnish their service to all who reasonably require the same."); *see also* Wis. Stat. § 196.37(2) (empowering the Commission to order public utilities to provide reasonably adequate service). The applicant intends to provide service to the data center under the Very Large Customer tariff under review in docket 6630-TE-113. Rebuttal-WEPCO-Stasik-r 12-13 (PSC REF#: 537166 confidential, PSC REF#: 537167 public); Ex.-WEPCO-Stasik-28 (PSC REF#: 540567).

Overall, the modeling confirmed that, even if a lower new load threshold is realized, the model still selected the full proposed project when taken in conjunction with other modeling considerations such as DLOL and seasonal accreditation. Moreover, the Commission finds the applicant's information provided in the evidentiary record persuasive that the new load will be realized in a sufficient manner to warrant authorization of the proposed project. Since the applicant is reasonably sure of and provided evidence of having a portion of this new load come to fruition, the proposed project would not constitute facilities unreasonably in excess of future requirements and satisfy the reasonable needs of the public for an adequate supply of electric energy. To ensure and monitor the accuracy of the applicant's load forecast and as will be discussed later in this Final Decision, the Commission adopts an order condition that requires the applicant to notify the Commission in the event that the Very Large Customer's load forecast significantly decreases and to take all appropriate customer protection measures detailed in the applicant's testimony and exhibits, or any approved tariff.

The Commission finds that the project will satisfy the reasonable needs of the public for an adequate supply of electric energy, as required by Wis. Stat. § 196.491(3)(d)2., and will not provide facilities unreasonably in excess of probable future requirements under Wis. Stat.

§ 196.49(3)(b)2. Additionally, the Commission finds that the proposed project, as approved by this Final Decision, is in the public interest considering alternative sources of supply. Wis. Stat. § 196.491(3)(d)3. The applicant performed a reasonable set of analyses that demonstrated the proposed project satisfies the applicant's reliability, energy, and capacity needs in the most effective manner.

Similarly, the Commission further finds that the applicant's analyses demonstrate that the proposed project will not impair the efficiency of the applicant's service, and when placed in operation, will not add to the cost of service without proportionately increasing the value or available quantity thereof. Indeed, the proposed project was a part of the least cost, optimized portfolio in almost all of the runs prepared by the applicant and reviewed by Commission staff. Additionally, the proposed project will not provide facilities unreasonably in excess of probable future requirements, as described earlier. Thus, the proposed project fulfills the requirements of Wis. Stat. §§ 196.49(3)(b) and 196.491(3)(d)5.

The record demonstrates that the primary need for the project is to provide flexible and reliable generating capacity to the electric grid to meet the applicant's need for additional capacity. As discussed further below, the modeling files submitted by the applicant and intervenors and reviewed by Commission staff demonstrated that, under a variety of future scenarios, the project is the least-cost alternative. The model selected the project as part of the GRP in the majority of runs during robust analysis of possible futures.

The applicant asserted that the proposed project is part of a least-cost portfolio that will support continued, reliable service to existing customers, as well as serve a large new load in the I-94 corridor. A review of the applicant's modeling demonstrates that the proposed project is

routinely selected as part of the applicant's lowest-cost generation portfolio across a number of different future assumptions about load growth, fuel costs, rollout of new MISO Resource Adequacy constructs, implementation of greenhouse gas regulations, and alternative technologies. Ex.-PSC-DRR-r: Responses PSCW-DG-6.9 and 6.10 (PSC REF#: 531743).

Intervenors to this proceeding claimed that other generation or storage technology resources could be more cost-effective than the proposed project, and result in lower environmental or health impacts. Intervenors also expressed concerns that the full I-94 corridor load might not come to fruition. However, the modeling provided by the applicant and reviewed by Commission staff demonstrated that the proposed project continued to be a part of the applicant's least-cost generation portfolio even after incorporation of elements of the modeling changes requested by intervenors, including reduced I-94 corridor load growth and model implementation of more up-to-date MISO Resource Adequacy constructs, such as the DLOL construct.

Material Adverse Impacts to Wholesale Competition

Under Wis. Stat. § 196.491(3)(d)7., the Commission may only issue a CPCN for a project that "will not have a material adverse impact on competition in the relevant wholesale electric service market." The applicant asserted that a Herfindahl-Hirschman Index analysis confirmed that the proposed project does not have a material adverse impact, nor that it would be expected that the local wholesale market prices would be significantly impacted as it is replacing an existing facility of a similar size. Direct-WEPCO-Zahniser-Word-10, 13-14 (PSC REF#: 537141). No parties nor Commission staff offered evidence that the proposed project would have a material

adverse impact on the wholesale electric market. The Commission finds that the project meets the requirements of Wis. Stat. § 196.491(3)(d)7.

Environmental Review and Compliance with the Wisconsin Environmental Policy Act

WEPA requires all state agencies to consider the environmental impacts of "major actions" that could significantly affect the quality of the human environment. Wis. Stat. § 1.11. This can be satisfied through an EA rather than an EIS if the project is unlikely to have significant impact on the human environment as defined by Wis. Stat. § 1.11. The Commission must determine whether it has complied with this requirement.

In addition, under the CPCN statute, the Commission must find that the proposed project, with the conditions imposed by this Final Decision, is in the public interest considering environmental factors (Wis. Stat. § 196.491(3)(d)3.), and that the proposed project will not have an undue adverse impact on environmental values such as, but not limited to, ecological balance, public health and welfare, historic sites, geological formations, the aesthetics of land and water, and recreational use (Wis. Stat. § 196.491(3)(d)4.).

Compliance with WEPA

The proposed project is explicitly categorized as a Type II action under Wis. Admin. Code § PSC 4.10(2), Table 2. Type II actions are proposed actions involving requests for Commission approval that have the potential to significantly affect the quality of the human environment within the meaning of Wis. Stat. § 1.11(2)(c). Such actions require the preparation of an environmental assessment (EA). Staff's intent to prepare an EA for the proposed project was arrived at in alignment with these provisions.

An EA was prepared to determine if an EIS is necessary under Wis. Stat. § 1.11. On July 22, 2024, pursuant to Wis. Admin. Code § PSC 4.20(1m), a notification of the Commission's intent to prepare an EA, including a solicitation for comments on the environmental aspects of this project, was sent to the docket mailing list. The Commission received public comments on the proposed project during the EA scoping period. A preliminary determination was made on December 26, 2024, concluding that preparation of a full EIS was not necessary because no significant impacts to the environment as a result of the project were expected.

Intervenor Walnut Way objected to the Commission's preparation of an EA rather than an EIS in this docket, stating that the EA was insufficient to comply with WEPA. The provisions of Wis. Admin. Code ch. PSC 4 that direct the Commission's process of environmental review are implemented by the legislature to work in concert with WEPA and provide specific procedures that the Commission must follow. Wisconsin Admin. Code § PSC 4.10(2) and Table 2 provide that the "construct[ion] at the site of an existing electric generation facility, [of] any of the following electric generation facilities (if not powered by nuclear energy or fueled by coal): a combustion turbine facility; a combined cycle facility; or a cogeneration facility" is an action for which the Commission shall prepare an EA, unless it determines that an EIS is necessary. In this case, the Commission determined that an EIS was not necessary because the project will be constructed on an existing brownfield site, and is not expected to have impacts on the environmental factors relevant to WEPA review that rise to the level of "significant." Its preparation of the EA therefore fulfilled the administrative code requirement.

Commission and DNR staff evaluated and described the anticipated impacts of the proposed project in the EA for the project. (PSC REF#: 531153.) Anticipated impacts, potential

mitigation actions, and the status of permits, many of which are discussed below, were further described in Commission and DNR staff testimony. (PSC REF#: 529441, PSC REF#: 529442, PSC REF#: 531311.) The EA considered a range of potential impacts that might occur during the construction and operation of the proposed project, including impacts to landowners, aesthetics, property values, water resources, archaeological and historic resources, cultural resources, radio and television reception, communication facilities, endangered resources, invasive species, waterways and wildlife. Anticipated impacts, potential mitigation actions, and the status of permits, many of which are discussed below, were further described in Commission and DNR staff testimony. (PSC REF#: 529441, PSC REF#: 529442, PSC REF#: 531311.)

The EA concluded that construction and operation of the proposed project would likely have a range of environmental effects, discussed in more detail below, none of which Commission staff has identified as significant. This evaluation assumed that some, if not all, of the mitigation measures proposed by the applicant and Commission or DNR staff would be used.

Walnut Way contended that compliance with WEPA required the Commission to come to a different conclusion and to prepare an EIS instead. Walnut Way argued that the Commission erroneously assessed the proposed project's environmental impacts as a result of its failure to consider it as a "new" project rather than a replacement for the retiring coal-fired units at the site. However, although the air emissions analysis section of the EA acknowledged the retirements of those units, none of the Commission's environmental analysis or conclusions under WEPA were predicated on these retirements. (PSC REF#: 531153 at 63-69.)

The Commission notes that pursuant to the Wisconsin Administrative Code, the EA is required to be a "concise" document.[7] This requirement is distinct from those required of an EIS, which must supply a more fulsome analysis reserved for major projects that significantly affect the quality of the human environment. Intervenor Walnut Way took issue with the extent of the EA's discussion of particular issues such as environmental justice and air quality impacts. As noted below, the Commission's consideration of air quality impacts is circumscribed by statute, and the EA's discussion of environmental justice matters was sufficient to comply with WEPA requirement. The Commission finds that there is ample testimony in the record, and information in the EA itself, supporting the sufficiency of the EA, and the EA's conclusion that the project is "unlikely to have significant impact on the human environment as defined by Wis. Stat. § 1.11, therefore the preparation of an EIS is not required." (PSC REF#: 531153.)

The Commission finds that it has fulfilled its requirements under WEPA through the preparation of the EA and appropriately found that no EIS was required. The environmental review conducted in this proceeding complies with the requirements of Wis. Stat. § 1.11 and Wis. Admin. Code ch. PSC 4.

Site Alternatives and Authorized Site

The CPCN statute requires the Commission to consider alternative locations when determining whether a proposed generating plant is in the public interest. Wis. Stat. § 196.491(3)(d)3.

Wisconsin Admin. Code § PSC 111.53(1)(e) and (f) require a CPCN application to provide the alternatives considered, describe the siting process, identify the factors considered in

[7] Wis. Admin. Code § PSC 4.20(1).

choosing alternative sites, and include specific site-related information for each site. The purpose of requiring this information is to equip the Commission to: (1) understand the overall context of site alternatives; (2) understand and potentially judge an applicant's decision to move forward with a site, given the other alternatives considered; (3) understand in great detail the characteristics of the two sites proposed to the Commission; and (4) determine whether one, both, or neither of the two sites is in the public interest, taking into consideration the Commission's judgment of the factors the applicant used in ranking the alternatives and the rank it assigned.

For purposes of the Commission's review, the applicant proposed two site alternatives for the facility: a proposed site and an alternate site. Both the proposed and alternate site are located at the applicant's existing 1,000-acre parcel of land 15 miles south of Milwaukee. The applicant's proposed site would locate the CTs west of the existing Elm Road Generating Station. The alternate site would locate the CTs east of the existing Oak Creek Liquefied Natural Gas (LNG) Plant. The Commission authorizes the proposed site for the facility as described in the CPCN application.

The application discussed the siting process that led to the selection of the proposed project site. Ex.-WEPCO-Application-CPCN Application: Section 1.4 (PSC REF#: 505446 confidential, PSC REF#: 505447). The applicant's justification for selecting the proposed project site at OCGS include:

- The site currently houses an existing power plant, existing transmission infrastructure and natural gas infrastructure.

- The site would also provide support to the 138 kV and 345 kV transmission systems.

Siting at OCGS is anticipated to allow the applicant to use MISO's Generating Facility Replacement Process. The Commission reviewed the proposed site as well as the alternative site. There are minor differences between the two sites in terms of environmental impacts. Both sites are located on land that has been disturbed by the previous development and operations of the OCGS facilities. Construction of the facilities at the Proposed Site would cost approximately $38 million less than the Alternative Site. The Commission finds that the Proposed Site is optimal for construction of the new CTs.

Individual Hardships

The CPCN statute requires that the Commission determine whether the project is in the public interest considering, in part, individual hardships. Wis. Stat. § 196.491(3)(d)3.

During the project review and public hearings, several comments from members of the public were provided that expressed opposition primarily due to new impacts associated with a power plant and the proximity to residences and other dwellings, although none of which demonstrate the construction or operation of the proposed project would result in individual hardships. The proposed project units will be constructed on land that currently hosts existing electric generation facilities, and no significant impacts to local residences or businesses are anticipated from construction or operation of the project facilities. The Commission finds, pursuant to Wis. Stat. § 196.491(3)(d)3., that individual hardship considerations do not preclude a finding that the project is in the public interest.

Consideration of Environmental Impacts

The CPCN statute requires the Commission to determine that the project will not have an undue adverse impact on environmental values such as, but not limited to ecological balance, public health and welfare, historic sites, geological formations, the aesthetics of land and water, and recreational use. Wis. Stat. § 196.491(3)(d)4.

As discussed in the EA, the main environmental impacts anticipated during construction of this project are those associated with land disturbance, localized traffic impacts, noise, and light. During operation of the project facilities, there would be air emission impacts, noise, light, aesthetic impacts, and production of waste products, such as oil-contaminated wastewater. Some of these areas of environmental impacts are regulated by DNR permits.

A review of historic resources found no burial sites, archaeological sites, or other sensitive cultural resources in the area anticipated to be impacted by construction of the approved site. Based on the information from the historic resource review and the applicant's statement regarding the process if any unanticipated resources are discovered, the Commission finds that construction of the proposed facilities is not expected to affect any historic properties under Wis. Stat. § 44.40.

Impacts to wildlife are not anticipated to be significant due to the location of the project site on the existing OGCS property in light of its lack of natural habitats and the existing levels of disturbance. Ex.-PSC-EA 60 (PSC REF#: 531153).

An Endangered Resources (ER) Review was conducted for the project area. This review found that the following resources may be impacted by approval of the project:

- One endangered bird species.
- One natural community.

- One special concern plant species.
- Two special concern bumblebee species including one that is federally endangered.

The applicant has committed to specific mitigation actions for these species, which are listed in the EA. Ex-PSC-EA- 34 (PSC REF#: 531153.) Based on the information available from the DNR and U.S. Fish and Wildlife Service, the proposed project layout, and planned activities as described in the application, this project is not expected to have a significant impact on endangered, threatened or special concern species as well as the natural community, provided the listed actions are implemented.

The applicant stated that the proposed project would result in a reduction in turbine emissions rates and an improvement in efficiency over the retiring equipment. DNR staff calculated an emission rate for the project and compared that to the historical emission rate for the existing Oak Creek generating units. The project will result in net reductions to emissions from the Oak Creek Site for carbon dioxide equivalents (CO^2e) and all criteria air pollutants except for volatile organic compounds (VOC). Direct-WDNR-Munson-5 (PSC REF#: 529441).

Protection of the air and water resources is the subject of several DNR permits that are intended to establish limits to avoid or reduce significant adverse impacts. While the Commission has no jurisdiction over DNR permits, as described above it is interested in the status of necessary DNR permits that are of significant importance to the ability of the project, if approved, to operate. DNR must issue certain water permits within 30 days after the issuance of a Final Decision. Wis. Stat. § 30.025(4). The project area was evaluated for wetlands and waterway impacts and the project will not require permit authorization under Wis. Stat. Ch. 30 as

the project is being sited and will be constructed to avoid regulated impacts to waterways. A total of 15 wetlands were identified within the approved site. However, due to the low quality of the wetlands the project will not require permit authorization under Wis. Stat. § 281.36. Storm water and erosion control permits would be required prior to the start of construction.

In considering CPCN applications, the Commission "may not determine that the design or location or route is not in the public interest because of the impact of air pollution if the proposed facility will meet the requirements of ch. 285." Wis. Stat. § 196.491(3)(d)4. Wisconsin Stat. ch. 285 is the chapter on "Air Pollution" and is enforced by DNR. The applicant must obtain air pollution control permits from the DNR, which partners with the EPA for administering appropriate parts of the federal CAA. The Wisconsin DNR has responsibility for review of permit applications and issuance of air pollution control permits in accordance with the CAA and Wisconsin statutes. An initial discussion of the anticipated air emissions impacts associated with the proposed project was provided in the testimony of DNR staff witness Jordan Munson. (PSC REF#: 529441.)

A list of all anticipated permits, from DNR and other entities, is included in the application and the EA. This Final Decision includes a standard order condition requiring the applicant to obtain all necessary federal, state, and local permits prior to commencement of construction.

After considering the substantial record, the Commission finds that the project is in the public interest considering environmental factors, that the project will not have an undue adverse impact on environmental values. (PSC REF#: 527759.) The statutory criteria of Wis. Stat.

§ 196.491(3)(d)4. have been met. To the extent the project will have any environmental impacts, these impacts can be mitigated by conditions imposed by this Final Decision.

Land Use and Development Plans

Wisconsin Stat. § 196.491(3)(d)6. requires that a proposed generation facility not "unreasonably interfere with the orderly land use and development plans for the area involved." The project will be located on an existing electric generation site owned by the applicant and is zoned for industrial use. The Commission finds the project meets the requirements of Wis. Stat. § 196.491(3)(d)6.

Brownfields Consideration

Wisconsin Stat. § 196.491(3)(d)8. requires that for a large electric generation facility, "brownfields, as defined in Wis. Stat. § 238.13 are used to the extent practicable." The proposed project is located on a site that meets the definition of brownfield under Wis. Stat. § ch. 238.13(1)(a), and accordingly, the Commission has met its requirements to ensure brownfields are used for facility siting to the extent practicable.

Project Cost and Construction Schedule

Construction of the proposed project, as authorized by this Final Decision, is estimated to cost $1.205 billion, excluding AFUDC as discussed in the application documents. (PSC REF#: 505446 confidential, PSC REF#: 505447 public.) An approximate breakdown of the estimated $1.205 billion for the project is as follows:

Project Cost	
EPC cost	$813,000,000
Equipment supplier cost	$361,000,000
Owner's costs	$31,000,000
Total Project Costs	**$1,205,000,000**

Construction of the proposed project is expected to take place in May 2026, with an in-service date of July 2028.

Discussion of Order Conditions

In issuing a CPCN for a public utility, the Commission has the authority under Wis. Stat. §§ 196.395 and 196.491(3)(e) to include conditions. Commission staff, the applicant, and intervenors, presented various order conditions for consideration. In addition, the Commission adopts two order conditions of its own.

Standard Order Conditions

Typically, the Commission's Final Decision for an electrical generation construction project includes general conditions relating to the authorized construction, reporting, and other matters. Commission staff suggested similar conditions of approval for the Commission's consideration in this proceeding. The Commission finds it reasonable to impose the general order conditions as suggested by staff, with modifications, with the exception of a condition related to eminent domain rights.[8]

The applicant questioned the necessity of the standard order condition requiring the applicant to submit quarterly reports related to local labor recruitment efforts. The applicant asserted that it had a strong relationship with labor and are already working with Wisconsin

[8] The eminent domain rights order condition is intended for merchant plants. The Commission declines to impose that condition here, as it does not apply to public utilities with eminent domain rights.

contractors and labor unions to ensure available local craft labor for the project. The Commission deems it reasonable to require the applicant to provide quarterly reports on related to local labor recruitment efforts. Given the applicant's representation of having strong working relationships with local labor and contractors, the applicant should have no issues complying with these reporting requirements.

Another standard condition opposed by the applicant is the requirement that an applicant mitigate impacts to line-of-sight communications if a landowner shows actual disruption to broadcast communications post-construction. The applicant opposed this order condition because it was unaware of any Wisconsin power plant, outside of wind turbines that had impacted broadcast communications. Rebuttal-WEPCO-Terrulli-r-9 (PSC REF#: 537145). The Commission acknowledges the lack of data line-of-sight broadcast interruptions caused by this type of construction. However, rather than removing the condition altogether, the Commission prefers to take a measured approach, instead adding "to the extent practicable" to the condition to provide flexibility when interruptions might occur.

The applicant opposed the standard overrun condition requiring the applicant to report on any and all increases to the project's estimated project cost as provided in its application, instead proposing that the applicant should notify the Commission only if it discovered or identified that the project cost may exceed the estimated cost by more than 10 percent. Rebuttal-WEPCO-Stasik-r-19-22 (PSC REF#: 537166 confidential, PSC REF#: 537167 public). The Commission rejects the applicant's proposal for a 10 percent tolerance threshold and notes that the Commission moved away from using percentage thresholds in 2023, further noting that the condition is only a notification requirement and does not pre-judge cost recovery. The

Commission deems it reasonable to impose the cost reporting condition as originally suggested by Commission staff.

The applicant opposed the standard stray voltage testing condition. The applicant argued that the condition was unnecessary because the applicant is a distribution utility obligated to follow rules already in place regarding stray voltage. Commission staff offered minor revisions to the standard language to address this point but continued to recommend the condition. Surrebuttal-PSC-Grant-16-17 (PSC REF#: 536068). The Commission deems it reasonable to require the applicant to make stray voltage testing available at each agricultural confined animal operation within one half-mile of the project facilities. The condition is standard in electric construction projects and that its removal would be inconsistent with the Commission's prior decisions.

Project-specific Conditions

Pursuant to its authority under Wis. Stat. §§ 196.395 and 196.491(3)(e), the Commission may impose such project-specific conditions within its authority that it deems necessary for approval of a CPCN.

Commission staff and several intervenors proposed conditions relating to cost overruns. Commission staff suggested an order condition for the Commission's consideration requiring the applicant to provide a summary of competitive bids for the project, originally as a stand-alone reporting condition. The applicant asserted that this condition would be administratively burdensome and would not benefit cost controls related to the project. Commission staff revised its suggested condition by incorporating this requirement condition into the standard order condition for quarterly progress reports. Surrebuttal-PSC-Grant-14-15 (PSC REF#: 536068).

The Commission adopts a modified version of the revised language proposed by Commission staff and determines that it is reasonable to require the applicant to provide summaries of competitive bids obtained for the project. The Commission incorporates this requirement into the quarterly reporting condition, with the language "as applicable" added to mitigate administrative burden.

CUB witnesses Corey Singletary and Edward Burgess and WIEG witness Randel Pilo also suggested order conditions for the Commission's consideration. CUB witness Singletary recommended that the Commission require the applicant to notify the Commission within 30 days of receipt of a Change Order Request; the submission of a Change Order Notice; or the application of the require Change Order provisions within the Engineering, Procurement, and Construction (EPC) Agreement if such change is likely to increase the total cost of the project or affect the in-service date of the project. Direct-CUB-Singletary-r-14-15 (PSC REF#: 537182). Applicant witness Rich Stasik argued these notifications were unnecessary and overly broad. Rebuttal-WEPCO-Stasik-20-22 (PSC REF#: 537167). The Commission appreciates the intervenors' efforts to address issues related to cost overruns and acknowledges the importance of change orders as components of construction project management. However, the Commission deems the condition unnecessary for approval of the project because the standard order conditions include requiring the applicant to notify the Commission of cost increases and in-service date changes and to obtain further approval for significant scope changes addresses these concerns. Instead, the Commission opts to investigate the topic of change orders as they relate to project cost overruns in the separate, generic investigation ordered here, for the same reasons as stated below regarding the suggested *force majeure* order condition.

Witness Singletary also recommended the inclusion of an order condition requiring the applicant to notify the Commission if the applicant becomes aware that the in-service date of the proposed project would be delayed by 30 or more days or if a delay would affect resource accreditation by MISO. Direct-CUB-Singletary-r-14 (PSC REF#: 537182). Applicant witness Stasik asserted this condition was unnecessary and overly broad. Rebuttal-WEPCO-Stasik-22 (PSC REF#: 537167). While the Commission acknowledges the proposed condition includes MISO resource accreditation determination delays, the Commission finds the suggested condition to be unnecessary and duplicative due to the standard order condition requiring quarterly progress reports on the status of construction. The Commission additionally notes that the applicant has an incentive to bring generators online as quickly as possible.

Witness Singletary further recommended that the Commission impose an order condition explicitly defining circumstances that would not constitute *force majeure*. Direct-CUB-Singletary-p-13-14 (PSC REF#: 537182). Applicant witness Stasik objected, stating that the *force majeure* clause contained in the EPC agreement for the project was materially identical to those contained in the contracts for its three previous RICE projects and that the CUB definition was not the norm on the market. Rebuttal-WEPCO-Stasik-23 (PSC REF#: 537167). The Commission acknowledges the relationship between cost overruns and *force majeure* events, but finds that the Commission is not positioned to prescribe such definitions at this time as the Commission lacks sufficient information to make such determinations due to the legally complex and evolving nature of *force majeure* clauses and their interplay with cost overruns. The generic investigation ordered in this docket will provide the Commission with the tools and information needed to address *force majeure* as one of many topics to be incorporated into a holistic

framework and methodology, rather than addressing cost overruns in a piecemeal fashion. The Commission finds that the order condition suggested by witness Singletary is not necessary for approval of the project.

CUB witness Burgess recommended the inclusion of order conditions that would restrict cost recovery until certain milestones are met regarding projected new load growth; require the applicant to conduct competitive solicitations for future capacity resources in lieu of the project; and require the applicant to pursue additional demand-side management. Direct-CUB-Burgess-r-65-66 (PSC REF#: 537180).

The applicant objected to these conditions. As to the first of these, the applicant pointed out that the Commission has never commissioned cost recovery, including AFUDC, contingent on milestones such as those suggested by CUB. WEPCO-Surrebuttal-Stasik 8-9 (PSC REF#: 536103). Responding to the suggested competitive-solicitation requirement, the applicant pointed out that its modeling had demonstrated that no alternative capacity resource or combination thereof was a lower-cost alternative to the proposed project, which provides an average NPV savings of $413 million over an equivalent amount of BESS. WEPCO-Direct-Gerlikowski 34-36 (PSC REF#: 537429). And the applicant also stated that demand-side management could not feasibly be implemented soon enough to address the time-sensitive need presented in this docket. Rebuttal-WEPCO-Gerlikowski-r-70 (PSC REF#: 537164).

In light of the facts provided in the record, including the robust modeling analysis data, the Commission determines that the conditions proposed by witness Burgess are not necessary for approval of the proposed project.

WIEG witness Pilo suggested that the Commission impose an order condition that would implement a number of proxied cost discipline measures, including capping project costs at the CPCN approval amount without escalation, requiring least cost procurement methods such as issuing a request for proposals, and fixing project financial parameters at a level that place stranded asset risks on shareholders instead of customers. Direct-WIEG-Pilo-r-17-18 (PSC REF#: 536859). The applicant likewise opposed this condition, asserting that the standard cost overrun conditions were adequate. Rebuttal-WEPCO-Stasik-19-22, 26-27 (PSC REF#: 537167). The Commission finds that some topics would be addressed by other order conditions while others would be more appropriately addressed in a generic cost overrun investigation and/or docket 6630-TE-113. The Commission deems none of the proxied cost disciplines as necessary for approval of the proposed project.

DNR staff recommended the following conditions to help avoid indirect impacts to wetlands and waterways during construction of this project:

- Prior to construction, install signage at wetland and waterway boundaries that are within the project construction area to alert construction crews to not work within or access across these areas unless permit coverage was granted for the area.
- Develop and implement a Storm Water Erosion Control Plan and a Stormwater Management Plan that meet or exceed the standards found in Wis. Admin. Code Chs. 3 NR 216 and NR 151. Implement the technical standards developed per Subchapter V of Wis. Admin. Code Ch. NR 151.

- Install all site-specific sediment and erosion control measures and devices prior to any construction activities commencing and regularly inspect and maintain them through all construction and restoration phases.
- Provide copies of all plans and environmental documents to construction crews and inspectors. Plans should clearly label the locations of wetlands and waterways and include language stating vehicle access, storage of materials, grading, and all other construction activities are not permissible within these areas. Plans should also clearly label where sediment and erosion control measures and devices need to be installed if working adjacent to wetlands and waterways.
- Implement a construction sequencing plan that minimizes the amount of land disturbed or exposed (susceptible to erosion) at one given time across the project.
- Vegetate disturbed areas and areas of exposed soil as soon as possible and seed with a cover crop and/or native seed mix to minimize erosion potential and prevent the establishment of invasive species.
- Prepare and implement an invasive species management plan that identifies known areas of invasive species populations and includes specific protocols to minimize the spread of invasive species.
- Leave existing vegetative buffers in place to the maximum extent practicable.
- Avoid the use of herbicide in wetlands and near waterways, or utilize herbicides approved for use in aquatic environments.

Direct-DNR-Radermacher (PSC REF#: 529442). The applicant did not oppose these order conditions. The Commission finds it reasonable to include these measures as conditions for the approval of the project.

The Commission also adopts a project-specific order condition to mitigate the uncertainty surrounding the forecasted I-94 corridor load attributable to a single customer, the Very Large Customer. The law requires the Commission to consider whether the size of the generation project the applicant is requesting to build is reasonable to meet the needs of the public for an adequate supply of energy. Wis. Stat. § 196.491(3)(d)2. This prevents a utility from overbuilding, and customers overpaying for a need that is in excess of requirements. In prior construction dockets, the Commission has considered the normal load growth or need attributable to thousands of individual customers in assessing whether a generation plant is appropriately sized. The risk presented by inaccurate forecasting for that type of anticipated load is moderated by the number of customers involved. When the entirety of a forecasted new load rests on the actions of a single customer, the risk is greater. The Commission finds that this increased risk and the significant costs associated with the project make it appropriate to require a higher level of assurance that the anticipated large load will materialize, and the imposition of stronger safeguards. The degree of certainty of the anticipated load was a central focus of party testimony and Commission consideration in this docket, and the Commission and its staff rigorously reviewed the issue.

The reasonable need of the public for utility service is the key standard applicable to this issue. The applicant is statutorily obligated to serve new load pursuant to Wis. Stat. § 196.03(1), which requires public utilities to "furnish reasonably adequate service and facilities." It is

well-settled Wisconsin law that, in enacting this and other laws regulating utilities, "the legislature has determined that the public interest requires that public utilities shall, within their undertaking, furnish their service to all who reasonably require the same." *Northern States Power Co. v. Public Serv. Comm'n*, 246 Wis. 215, 228, 16 N.W.2d 790, 795 (1944). "All" includes more than just existing utility customers. It also includes new ones, including new businesses like the large load customer here. To conclude otherwise would prevent growth entirely. And as relevant to the facts of this CPCN application, a utility may not connect new loads to its system in a way that jeopardizes reliability or reasonably adequate service to existing customers.

As noted above in the modeling discussion above, certain modeling sensitivities provided by the applicant, including reduced I-94 corridor load growth under certain circumstances, did not include the proposed project as part of the least-cost generation portfolio. The applicant has provided some reassurances in the record here and in other dockets as to the certainty of the future load, including tariffs and service agreements. The agreement currently in place to protect consumers is one of multiple elements currently under development by the applicant, and these safeguards helped in form the Commission's reasonable need determination. However, in consideration of the valid concerns expressed in the record and shared by the Commission as discussed here, the Commission finds it reasonable to supplement the applicant's affirmations regarding risk with an order condition requiring notification in the event the Very Large Customer's load forecast significantly decreases.

This order condition will allow the Commission to understand in a timely fashion how such a decrease interacts with the assurances provided in the applicant's testimony and evidence.

It will also ensure that customers will not bear the risk of subsidizing projects when they are not needed. Based on the facts of this case, transparency and protection of the public interest require this added protection. The two elements of this condition are a notification requirement and a guarantee that, in the event of a decrease in load forecast, the applicant implements all appropriate customer protection measures detailed in its application, testimony, and exhibits, as well as any approved tariff in response to that decrease.

Given that project being driven in large part by the anticipated load increase due to only one customer, the Very Large Customer, the Commission finds it reasonable to require that, in the event that the Very Large Customer's load forecast significantly decreases, the applicant notify the Commission within 30 days and take all appropriate customer protection measures detailed in applicant testimony and exhibits or any approved future tariff.

Finally, the Commission adopts an order condition relating to demand response. Under the CPCN law, the Commission must consider whether this project is approvable in light of other energy and capacity resources that might also meet the applicant's need, incorporating a number of public interest considerations. *See* Wis. Stat. § 196.491(3)(d)3. As discussed here, the proposed project represents one component of the applicant's overall resource mix and provides needed reliability and dispatchability to support renewable generation facilities fueled by intermittent resources like solar and wind. While the applicant is also requesting Commission approval in other dockets to build additional wind, solar, and battery storage capacity, several intervenors provided evidence of significant untapped potential for energy efficiency and demand response to add value and reduce costs for the applicant's customers. The evidence provided by the applicant, and vetted by Commission staff, demonstrates amply that demand

response alone cannot serve as a substitute for the proposed project in meeting its future capacity needs. However, the record showed that applicant could add significant demand response capacity as a low capital cost addition to the applicant's resource mix. It is reasonable to require the applicant to file in its next rate case an analysis of a robust and comprehensive demand response program as part of a portfolio to serve future needs.

Generic Cost Overrun Docket Opening

The record in this docket contains extensive discussion of the issue of cost overruns, and multiple order conditions to address cost overruns were suggested. As the Commission has noted in recent dockets, considering these issues exclusively on the back end of projects like this one presents challenges and creates inefficiencies. In rate cases, cost overruns are one of hundreds of issues presented, making it difficult for the Commission to direct its undivided attention to the subject. And the imposition of piecemeal order conditions in individual dockets does not holistically address the need for a framework and methodology to consider cost overruns.

The creation and implementation of such a framework requires a deliberative and comprehensive approach. This endeavor should involve gathering information, convening stakeholders, analyzing components, and developing workable strategies. It will attempt to develop best practices and guidelines to aid Commission review of cost overrun issues. A more cohesive and consistent approach across our regulated entities will have wide-ranging benefits.

The Commission does not intend to micromanage utilities' construction process or encroach on their oversight and authority over construction matters in its development of these cost overrun practices. The authorization of the investigation discussed here does not preclude

the Commission or staff from continuing work on this issue in the meantime, including the issuance of data requests and the collection of information needed to evaluate ongoing projects.

The Commission therefore directs the opening of a generic investigation to examine and develop a consistent approach to analyzing cost overruns. Further, Commission directs staff to prepare a scoping memo that includes, but is not limited to: causes, impacts, management/mitigation/prevention strategies, risk, frequency, timing/location, project types/divisions of work, monitoring, *force majeure* and other contract provisions, and how other states address the issue.

Conclusion

It is established law in Wisconsin that issuing a CPCN is a legislative determination involving public policy and statecraft. *Clean Wisconsin, Inc. v. Pub. Serv. Comm'n of Wis.*, 2005 WI 93, ¶ 35, 282 Wis. 2d 250, 700 N.W.2d 768. Wisconsin Stat. § 196.491 assigns to the Commission the role of weighing and balancing many conflicting factors. In order to determine whether construction of a new electric generating facility is reasonable and in the public interest, the Commission must not just apply the priority list in Wis. Stat. § 1.12(4), but also must examine the conditions written into that law and consider the purpose of the legislation.

These statutes require that when the Commission reviews a CPCN generation facility application, it must consider the reasonable needs of the public for an adequate supply of electric energy, alternatives, individual hardships, engineering, economics, safety, reliability, a host of environmental factors, the effect on electric rates, any interference with orderly local land use and development plans, and potential impacts to wholesale electric competition. Ultimately, the Commission must determine whether granting or denying a CPCN for a proposed project will

promote the public health and welfare. After weighing all of these factors and all of the conditions it is imposing, the Commission finds, for the reasons set forth in this Final Decision and administrative record developed for this proceeding, that issuing a CPCN is in the public interest considering its assessment of the reasonable needs of the public for an adequate supply of electric energy, alternatives, individual hardships, engineering, economics, safety, reliability, a host of environmental factors, the effect on electric rates, any interference with orderly local land use and development plans, and potential impacts to wholesale electric competition.

Certificate

The Commission grants the applicant a CPCN for construction of the proposed project, as described in the application and as modified by this Final Decision, at a total estimated cost of $1.205 billion.

Order

1. The applicant is authorized to construct the proposed electric generation facility at a total estimated cost of $1.205 billion excluding AFUDC, as described in the application and data request responses, and as modified by the Final Decision.

2. The applicant is authorized to accrue 100 percent AFUDC provided that the calculation of AFUDC shall not be based on a cost greater than $1.205 billion.

3. The Commission, consistent with its past practice, shall review in a future rate proceeding the recoverability of costs associated with the proposed project. If it is discovered or identified that the project cost, including *force majeure* costs, may exceed the estimated cost excluding AFUDC, the applicant shall, within 30 days of when it becomes aware of the possible change or cost increase, notify the Commission of the accounts or categories where the costs deviate from those authorized and shall itemize and segregate those costs by major accounts and provide sufficient documentation to support and explain the reasons for such deviations.

4. Should the scope, design, or location of the proposed project change significantly, the applicant shall notify the Commission within 30 days of becoming aware of possible changes. The applicant shall obtain approval from the Commission before proceeding with any substantial change in the scope, design, size, or location of the approved project.

5. If the applicant cancels the project or enters into any arrangement with another party regarding ownership or operation of the proposed facilities, the applicant shall provide prior notice to the Commission.

6. In the event that the Very Large Customer's load forecast significantly decreases, the applicant shall notify the Commission within 30 days and take all appropriate customer protection measures detailed in applicant's testimony and exhibits, or any approved future tariff.

7. All commitments made by the applicant in its application, subsequent filings, and the provisions of the Final Decision shall apply to the applicant, any agents, contractors, successors, assigns, corporate affiliates, and any future owners or operators of the project.

8. The applicant shall submit to the Commission the final actual costs, segregated by major accounts, within one year after the in-service date. For those accounts or categories, where actual costs deviate significantly from those authorized, the applicant shall itemize and explain the reasons for such deviations in the final cost report.

9. Beginning within 30 days after the end of the quarter during which the Final Decision is signed and served, and within 30 days of the end of each quarter thereafter and continuing until the authorized facilities are fully operational, the applicant shall submit quarterly progress reports to the Commission that include all of the following:

a. The date that construction commences;

b. Major construction and environmental milestones, including permits obtained, by agency, subject, and date;

c. Summaries of the status of construction, the anticipated in-service date, and the overall percent of physical completion;

d. The date that the facilities are placed in service;

e. As applicable, a summary of competitive bids received within the quarter, if any, for work to be performed and equipment to be procured as part of the project;

f. Its efforts, and the efforts of its contractors, to recruit Wisconsin residents to fill employment opportunities created by the construction of the proposed project;

g. Its efforts to collaborate with state registered apprenticeship programs; and

h. The actual number of Wisconsin residents and out-of-state workers employed on-site to construct the proposed project.

10. The applicant shall make available stray voltage testing at each agricultural confined animal operation within one half-mile of the project facilities, prior to commencing any project construction activity that may interfere with testing and after the project is energized. The applicant shall work with the farm owner to rectify any identified stray voltage problem arising from the construction or operation of the project, in compliance with the Commission's stray voltage protocol. Prior to testing, the applicant shall work with the applicable Commission staff to determine where and how it will conduct the stray voltage measurements. The applicant shall report the results of its testing to Commission staff in writing.

11. The CPCN is valid only if construction commences no later than one year after the latest of the following dates:

a. The date the Final Decision is served;

b. The date when the applicant has received every federal and state permit, approval, and license that is required prior to commencement of construction by construction spread under the CPCN;

c. The date when the deadlines expire for requesting administrative review or reconsideration of the CPCN and of the permits, approvals, and licenses described in par. (b);

d. The date when the applicant receives the Final Decision, after exhaustion of judicial review, in every proceeding for judicial review concerning the CPCN and the permits, approvals, and licenses described in par. (b).

12. If the applicant has not begun on-site physical construction of the authorized project within one year of the time period specified by this Final Decision, the Certificate authorizing the approved project for which construction has not commenced shall become void unless the applicant:

a. files a written request for an extension of time with the Commission before the effective date on which the Certificate becomes void; and

b. is granted an extension by the Commission.

13. If the applicant has not begun on-site physical construction of the authorized project and has not filed a written request for an extension before the date that this Certificate becomes void, the applicant shall inform the Commission of those facts within 20 days after the date on which the Certificate becomes void.

14. The applicant shall perform post-construction noise studies as described in the most current version of the PSC Noise Measurement Protocol. The applicant shall work with Commission staff to determine appropriate locations and conditions for the noise measurements. In the event of a substantial change to the proposed facility layout, the applicant shall confer with Commission staff to determine if a new pre-construction noise study must be completed. The applicant shall file a copy of the post-construction noise study report with the Commission.

15. To the extent practicable, the applicant shall mitigate impacts to line-of-sight communications and landowners who can show disruption to broadcast communications post-construction.

16. The applicant shall obtain all necessary federal, state, and local permits prior to commencement of construction.

17. The applicant shall conduct an updated ER Review closer to the start date of construction of the project (no more than one year prior to construction start).

18. The applicant shall submit, in its next rate proceeding, additional analysis of a robust and comprehensive demand response program capable of providing significant capacity.

19. Prior to construction, the applicant shall install signage at wetland and waterway boundaries that are within the project construction area to alert construction crews to not work within or access across these areas unless permit coverage was granted for the area.

20. The applicant shall develop and implement a Storm Water Erosion Control Plan and a Storm Water Management Plan that meet or exceed the standards found in Wis. Admin. Code chs. NR 216 and NR 151. Implement the technical standards developed per Subchapter V of Wis. Admin. Code ch. NR 151.

21. The applicant shall install all site-specific sediment and erosion control measures and devices applicable to a specific work area prior to the commencement of any construction activities and regularly inspect and maintain them through all construction and restoration phases.

22. The applicant shall provide copies of all plans and environmental documents to responsible construction crews and inspectors. These plans should clearly label the locations of

wetlands and waterways in allowed work or traffic areas and include language stating vehicle access, storage of materials, grading, and all other construction activities are not permissible within these areas. Plans should also clearly label where sediment and erosion control measures and devices need to be installed if working adjacent to wetlands and waterways.

23. The applicant shall implement a construction sequencing plan that minimizes the amount of land disturbed or exposed (susceptible to erosion) at one given time across the project.

24. The applicant shall vegetate disturbed areas and areas of exposed soil as soon as possible and seed with a cover crop and/or native seed mix to minimize erosion potential and prevent the establishment of invasive species.

25. The applicant shall prepare and implement an invasive species management plan that identifies known areas of invasive species populations and includes specific protocols to minimize the spread of invasive species.

26. The applicant shall leave existing vegetative buffers in place to the maximum extent possible.

27. The applicant shall avoid the use of herbicide in wetlands and near waterways, or utilizing herbicides approved for use in aquatic environments.

28. A generic investigation to examine and develop a consistent approach to analyzing cost overruns, separate and apart from this docket, shall be opened. The Commission directs staff to prepare a scoping memo including but not limited to the following topics: causes, impacts, management/mitigation/prevention strategies, risk, frequency, timing/location, project types/divisions of work, monitoring, force majeure and other contract provisions, as well as how other states address this.

29. The Final Decision takes effect one day after the date of service.

30. Jurisdiction is retained.

Dated at Madison, Wisconsin, the 2nd day of July, 2025.

By the Commission:



Cru Stubley
Secretary to the Commission

CS:CGB:dsa:arw:jlt:DL:02075386

See attached Notice of Rights

Docket 6630-CE-317

PUBLIC SERVICE COMMISSION OF WISCONSIN
4822 Madison Yards Way
P.O. Box 7854
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NOTICE OF RIGHTS FOR REHEARING OR JUDICIAL REVIEW, THE TIMES ALLOWED FOR EACH, AND THE IDENTIFICATION OF THE PARTY TO BE NAMED AS RESPONDENT

The following notice is served on you as part of the Commission's written decision. This general notice is for the purpose of ensuring compliance with Wis. Stat. § 227.48(2), and does not constitute a conclusion or admission that any particular party or person is necessarily aggrieved or that any particular decision or order is final or judicially reviewable.

PETITION FOR REHEARING

If this decision is an order following a contested case proceeding as defined in Wis. Stat. § 227.01(3), a person aggrieved by the decision has a right to petition the Commission for rehearing within 20 days of the date of service of this decision, as provided in Wis. Stat. § 227.49. The date of service is shown on the first page. If there is no date on the first page, the date of service is shown immediately above the signature line. The petition for rehearing must be filed with the Public Service Commission of Wisconsin and served on the parties. An appeal of this decision may also be taken directly to circuit court through the filing of a petition for judicial review. It is not necessary to first petition for rehearing.

PETITION FOR JUDICIAL REVIEW

A person aggrieved by this decision has a right to petition for judicial review as provided in Wis. Stat. § 227.53. In a contested case, the petition must be filed in circuit court and served upon the Public Service Commission of Wisconsin within 30 days of the date of service of this decision if there has been no petition for rehearing. If a timely petition for rehearing has been filed, the petition for judicial review must be filed within 30 days of the date of service of the order finally disposing of the petition for rehearing, or within 30 days after the final disposition of the petition for rehearing by operation of law pursuant to Wis. Stat. § 227.49(5), whichever is sooner. If an *untimely* petition for rehearing is filed, the 30-day period to petition for judicial review commences the date the Commission serves its original decision.[9] The Public Service Commission of Wisconsin must be named as respondent in the petition for judicial review.

If this decision is an order denying rehearing, a person aggrieved who wishes to appeal must seek judicial review rather than rehearing. A second petition for rehearing is not permitted.

Revised: March 27, 2013

[9] *See Currier v. Wisconsin Dep't of Revenue,* 2006 WI App 12, 288 Wis. 2d 693, 709 N.W.2d 520.

APPENDIX A

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